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April 7, 2026

ENGROSSED HOUSE
BILL NO. 3678

By: Provenzano and McCane of
the House

and

Gillespie of the Senate

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 1176, as last amended by Section 10, Chapter 452, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1176), which relates to the use of electronic communication devices to threaten, intimidate, or harass public officials; expanding protection for municipal officials and public school board members; modifying scope of certain definition; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1176, as last amended by Section 10, Chapter 452, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1176), is amended to read as follows:

Section 1176. A. Whoever, with the intent to threaten, intimidate or harass, or facilitate another to threaten, intimidate or harass, uses an electronic communication device to knowingly publish, post or otherwise make publicly available personally identifiable information of a peace officer, public official,

1 election official, medical care provider, or crime victim, and as a
2 result places that peace officer, public official, election
3 official, medical care provider, or crime victim in reasonable fear
4 of death or serious bodily injury shall, upon conviction, be guilty
5 of a misdemeanor punishable by imprisonment in the county jail for a
6 term not to exceed six (6) months, or by a fine not to exceed One
7 Thousand Dollars (\$1,000.00), or by both such fine and imprisonment.
8 Upon conviction for a second or subsequent violation, the person
9 shall be punished by imprisonment in the county jail for a term not
10 to exceed one (1) year, or by a fine not to exceed Two Thousand
11 Dollars (\$2,000.00), or by both such fine and imprisonment.

12 B. To the extent the provisions of ~~Section~~ subsection A of this
13 section apply to medical care providers, the protections provided
14 herein shall not apply when the incident is unrelated to the
15 provider's professional duties.

16 C. As used in this section:

17 1. "Crime victim" shall have the same meaning as defined in
18 Section 142A-1 of this title;

19 2. "Election ~~Official~~ official" means a member or employee of
20 the State Election Board or a county election board, the Secretary
21 of the State Election Board or a county election board, or a person
22 serving as a precinct official or absentee voting board member
23 appointed as required by law;

24

1 3. "Electronic communication" shall have the same meaning as
2 defined in Section 1172 of this title. Electronic communication
3 does not include broadcast transmissions or similar communications
4 that are not targeted at any specific individual;

5 4. "Electronic communication device" means any cellular
6 telephone, facsimile, pager, computer, or any device capable of
7 electronic communication;

8 5. "Medical care provider" means a doctor, resident, intern,
9 nurse, nurse practitioner, nurses' aide, ambulance attendant or
10 operator, paramedic, emergency medical technician, laboratory
11 technician, radiologic technologist, physical therapist, physician
12 assistant, chaplain of a health care facility, volunteer of a health
13 care facility, pharmacist, nursing student, medical student, member
14 of a hospital security force, and any other employee or contractor
15 working in or for a health care facility;

16 6. "Peace officer" shall have the same meaning as that term is
17 defined in Section 99 of this title;

18 7. "Personally identifiable information" means information
19 which can identify an individual including but not limited to name,
20 birth date, place of birth, mother's maiden name, biometric records,
21 Social Security number, official state- or government-issued driver
22 license or identification number, government passport number,
23 employer or taxpayer identification number or any other information
24

1 that is linked or linkable to an individual, such as medical,
2 educational, financial or employment information;

3 8. "Public official" means any person elected or appointed to a
4 state office in the executive, legislative, or judicial branch of
5 state government or other political subdivision of the state,
6 including any person elected or appointed to a municipal office,
7 authority, board or commission, or public school board; and

8 9. "Publish" means to circulate, deliver, distribute,
9 disseminate, transmit, or otherwise make available to another
10 person.

11 SECTION 2. This act shall become effective November 1, 2026.

12 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
13 April 7, 2026 - DO PASS
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